

COMMERCIAL LEASE AND TENANCY AGREEMENT

THIS LEASE AGREEMENT is executed at New Delhi on this 1st day of October, 2024, BY AND BETWEEN:

1. LESSOR (LANDLORD):

Mr. Ramesh Chandra Sharma, residing at Flat No. 12, Barakhamba Road, Connaught Place, New Delhi - 110001 (hereinafter called the 'LESSOR').

AND

2. LESSEE (TENANT):

TechVenture Solutions Private Limited, a company incorporated under the Companies Act, 2013, having its registered office at Suite 402, Barakhamba Road, Connaught Place, New Delhi - 110001, represented by its authorized Director, Mr. Ankit Verma (hereinafter called the 'LESSEE').

WHEREAS the Lessor is the absolute lawful owner of Commercial Office Space No. 402, 4th Floor, Measuring 1,200 sq. ft., Barakhamba Road, New Delhi (the 'Demised Premises').

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. LEASE TERM & DURATION:

The lease shall be for a total period of 36 (thirty-six) months commencing from 1st October 2024 to 30th September 2027, subject to renewal by mutual consent.

2. MONTHLY RENT:

The Lessee agrees to pay a monthly rent of INR 45,000/- (Rupees Forty-Five Thousand only), exclusive of GST and electricity charges. The rent shall be paid in advance on or before the 5th day of each calendar month via RTGS/NEFT or cheque.

3. INTEREST-FREE SECURITY DEPOSIT:

The Lessee has deposited a sum of INR 1,35,000/- (Rupees One Lakh Thirty-Five Thousand only), equivalent to three (3) months rent, as interest-free refundable security deposit. This deposit shall be refunded upon peaceful handover of vacant possession, subject to deductions for unpaid rent or physical damages.

4. PERMITTED COMMERCIAL USE:

The Demised Premises shall be utilized solely for running an IT consulting and software development office. No hazardous, illegal, or immoral activities shall be carried out.

5. SUB-LETTING & ASSIGNMENT (STRICTLY PROHIBITED):

The Lessee shall NOT sub-let, assign, transfer, or part with possession of the Demised Premises or any part thereof to any third party without obtaining prior written approval of the Lessor. Any unauthorized sub-letting shall constitute a material breach, conferring upon the Lessor the immediate right to terminate this lease.

6. LOCK-IN PERIOD & TERMINATION:

- (a) Mandatory Lock-In Period: There shall be a strict Lock-in Period of 11 (eleven) months from the commencement date (1st October 2024 to 31st August 2025). Neither party can terminate the lease during this lock-in period.
- (b) Early Exit Penalty: If the Lessee vacates or terminates this agreement before completion of the 11-month lock-in period, the entire Security Deposit of INR 1,35,000/- shall be strictly forfeited by the Lessor as liquidated damages.
- (c) Termination After Lock-In: After the expiry of the 11-month lock-in period, either party may terminate this agreement by serving two (2) months prior written notice or rent in lieu thereof.

7. CHEQUE DISHONOR & PAYMENT DEFAULT PENALTY:

- (a) Grace Period: A grace period of seven (7) days from the due date is permitted.
- (b) Default Interest & Bounced Cheque Penalty: In the event of rent delay beyond the 7-day grace period, the Lessee shall pay penal interest at the rate of 18% per annum on the outstanding amount.
- (c) Section 138 Negotiable Instruments Act: If any rent cheque issued by the Lessee is dishonored due to insufficient funds, the Lessee shall pay a penalty of INR 2,000/- per returned cheque, without prejudice to the Lessor's statutory right to serve a 15-day statutory demand notice and initiate criminal proceedings under Section 138 of the Negotiable Instruments Act, 1881.

8. REPAIRS AND MAINTENANCE:

Day-to-day routine maintenance and minor repairs (up to INR 2,000/- per instance) such as bulb replacement, faucet washers, and minor plumbing shall be borne by the Lessee. Major structural repairs, roof leakage, and electrical main defects shall be repaired promptly by the Lessor at his own expense.

9. PROTECTION AGAINST UNLAWFUL EVICTION:

The Lessor covenants that upon prompt payment of rent and adherence to terms, the Lessee shall peacefully hold and enjoy the Demised Premises without interruption. The Lessor shall not unlawfully dispossess or forcefully evict the Lessee without following due process of law prescribed under the Transfer of Property Act, 1882.

10. GOVERNING LAW & ARBITRATION:

This agreement is governed by the laws of India. Any dispute arising out of this agreement shall be settled through arbitration under the Arbitration and Conciliation Act, 1996 by a sole arbitrator mutually appointed in New Delhi. Courts in New Delhi shall have exclusive jurisdiction.

IN WITNESS WHEREOF, the parties hereto have signed this Lease Agreement on the date first above written.

LESSOR: _____ LESSEE: _____
(Ramesh Chandra Sharma) (TechVenture Solutions Pvt. Ltd.)